

HOUSE No. 471

The Commonwealth of Massachusetts

PRESENTED BY:

Erika Uytterhoeven

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the profession of fire-resistant material applicators.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Erika Uytterhoeven</i>	<i>27th Middlesex</i>	<i>1/9/2025</i>
<i>Steven J. Ouellette</i>	<i>8th Bristol</i>	<i>1/17/2025</i>
<i>Christopher Richard Flanagan</i>	<i>1st Barnstable</i>	<i>1/21/2025</i>

HOUSE No. 471

By Representative Uytterhoeven of Somerville, a petition (accompanied by bill, House, No. 471) of Erika Uytterhoeven, Steven J. Ouellette and Christopher Richard Flanagan relative to licensing of the profession of fire-resistant material applicators. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the profession of fire-resistant material applicators.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 112 of the General Laws is hereby amended by inserting after
2 section 289 the following section, titled “Fireproofing Applicators; License Requirement”:-

3 Section 290. (a) As used in this section, the following terms shall have the meaning
4 ascribed as follows:

5 (1) "Fire-resistant material" means cementitious or fibrous materials that are sprayed onto
6 a surface to provide fire-resistant protection of the substrate.

7 (2) "Fire-resistant material applicator" means an individual who applies fire resistant
8 materials.

9 (b) Requirements.

(1) Every fire-resistant material applicator shall undergo training to apply fire-resistant materials according to manufacturer specifications.

(2) Every fire-resistant material applicator shall annually register with the board of examiners of fireproofing applicators.

(3) When a fire-resistant material applicator satisfactorily completes training and registers as required by this subsection, the state board of examiners of fireproofing applicators shall issue a license that indicates that the fire-resistant material applicator is qualified to apply fire-resistant material.

(c) Violations. Any person applying fire-resistant material who does not receive the training, register, and obtain a license as required in subsection (b) of this section shall be fined up to two hundred-fifty dollars per violation.

SECTION 2. Chapter 13 of the General Laws is hereby amended by inserting after section 109 the following section, titled “Board of Examiners of Fireproofing Applicators”:-

Section 110. (a) There shall be within the division of occupational licensure a board of examiners of fireproofing applicators to consist of 7 voting members; 2 of whom will be designees of the commissioner of the division of occupational licensure and 5 persons, residents of the commonwealth, to be appointed by the governor for terms of 3 years, 2 of whom shall be fireproof applicators with at least 10 years of practical experience and who are wage earners, 2 of whom shall be fireproof applicators with at least 10 years of practical experience and 1 of whom shall be a representative of the public and subject to section 9B.

(b) No member shall serve for more than 2 consecutive and complete 3-year terms. As the term of the office of a member expires, a successor shall be appointed in like manner for a term of 3 years. The governor may fill a vacancy in the board for the unexpired portion of the term.

(c) The board shall annually elect from among its members a chairperson and vice-chairperson. The board shall meet at least 4 times annually and may hold additional meetings as necessary to discharge its duties. Members shall serve without compensation but shall be entitled to reasonable travel expenses. The members of the board shall be public employees for the purposes of chapter 258 for all acts or omissions within the scope of their duties as board members.

(d) The board shall have the following powers and duties: (i) to administer and enforce section 290 of chapter 112; (ii) to adopt rules and regulations governing the licensure of fireproof applicators, and business entities and schools teaching fireproof applicators; (iii) to establish standards of professional and ethical conduct; (iv) to establish standards for continuing education reflecting acceptable national standards; and (v) in conjunction with the division of occupational licensure, to investigate complaints, conduct inspections, request and review business records of licensees, and set and administer penalties as defined in sections 61 to 65E, inclusive, of said chapter 112 and section 290 of chapter 112 for fraudulent, deceptive or professionally incompetent and unsafe practices and for violations of rules and regulations promulgated by the board.